

Mark Neville v. Royal Moving & Storage, LLC, et al., 26CV-0039

Hearing: Motion to Set Aside Default

Date: September 10, 2026

TENTATIVE RULING

Mark Neville filed this action on January 20, 2026, against Royal Moving & Storage LLC (Royal Moving) and Best Choice Moving, LLC. The proof of service on file reports Royal Moving was personally served with the summons and complaint via its authorized agent on February 3, 2026. Defendants' default was entered on March 11, 2026.

Royal Moving filed a motion to set aside its default pursuant to Code of Civil Procedure sections 473, subdivision (b) on March 30, 2026. The motion initially came on for hearing on April 30, 2026. However, because Royal Moving did not file proof of notice of hearing, the motion was continued to September 17, 2026.¹ Plaintiff filed an *ex parte* application requesting immediate return of work tools and personal property on May 28, 2026. The Court denied the application for improper service on Defendant. (Order, 6/1/26.) The Court also advanced the hearing on the motion to set aside default to July 30, 2026. (*Ibid.*)

On July 14, 2026, Royal Moving, through its attorney of record, filed supplemental points and authorities, declarations and exhibits in support of its motion. These documents were served by email on Plaintiff on the date of filing.

A hearing on Royal Moving's motion to set aside default was held on July 30, 2026, and was continued to September 10, 2026. (Minutes, 7/30/26.) On August 3, 2026, Royal Moving filed the supplemental declaration of Ariana Martinez in support of the motion. Defendant emailed the declaration to Plaintiff on the date of filing.

Royal Moving contends that the parties entered into a written agreement agreeing to "the jurisdiction of the county and state of residency of the carrier place of business" (i.e. Clark County, Nevada). (See Martinez Dec., ¶ 3, Ex. A, ¶ 4, Ex. B.) Royal Moving argues the default should be set aside because its principals mistakenly believed the company could appear without counsel and therefore did not timely retain counsel to respond. Royal Moving further argues that the parties were in active, ongoing settlement discussions, which contributed to the delay in filing a response. Royal Moving maintains the failure to respond was inadvertent, not intended to prejudice Plaintiff or cause unnecessary delay or expense.

¹ The Court additionally noted in its ruling that the motion was filed without counsel and if Royal Moving & Storage LLC is not represented by counsel at the time of the continued hearing, the Court intends to deny the motion.

Royal Moving notes that the motion was brought “within approximately four months of the entry of default on March 11, 2026. Declaration of Duncan S. Skogsberg, ¶2.” (See Supp. Mem. P. & A., p. 3, ll. 13-14.) Mr. Skogsberg declares that he proposed to Plaintiff to enter into a stipulation to set aside the entry of default. (Skogsberg Dec., ¶ 2, Ex. A.) However, as of July 14, 2026, counsel had not received a response from Plaintiff. (*Ibid.*)

Mr. Skogsberg additionally declares that Royal Moving “intends to respond to the Complaint by way of a special appearance to file a Motion to Dismiss or Stay based upon the doctrine of Forum Non Conveniens on the grounds that the parties’ written agreement requires that any litigation arising out of the transaction and agreement between them be resolved the [sic] Nevada county where defendant’s business is headquartered.” (Skogsberg Dec., ¶ 3, Ex. B.)

Plaintiff filed a supplemental opposition on July 29, 2026. Plaintiff argues Plaintiff did not receive Defendant’s July 14 supplemental filing, could not locate any email transmittal, and does not recall agreeing to electronic service. Plaintiff also notes that the supplemental points and authorities list an incorrect suite number for his address (suite number “3103” instead of “103”).

Plaintiff argues Defendant had actual knowledge of the action yet failed to timely respond, and that purported settlement negotiations did not excuse the delay because Defendant could have negotiated and defended simultaneously. Plaintiff further disputes Defendant’s claim of reasonable, innocent ignorance, noting Defendant is an interstate commercial moving company. Plaintiff asserts ongoing prejudice because Defendant continues to retain Plaintiff’s household goods, personal property, and essential work tools, and requests that any order setting aside default include just terms, including an order requiring Defendant to promptly release and facilitate delivery of those items.

In her supplemental declaration filed on August 3, 2026, Ms. Martinez, principal member with Royal Moving, declares that although she cannot recall when Royal Moving was first served, she was surprised that they were being asked to defend a lawsuit outside of Nevada because Royal Moving’s customer agreements provide that jurisdiction and venue for any dispute lies in Clark County, Nevada, where Royal Moving is headquartered. (Martinez Suppl. Dec., ¶ 2.) Not knowing that California law does not allow a corporate entity to act on its own behalf, Royal Moving prepared its documents and pleadings and filed them. (See *Id.*, ¶ 3.) Ms. Martinez declares that Royal Moving’s mistake was an honest one and was not intended to cause any prejudice or needless cost to the plaintiff or court. (*Ibid.*)

Ms. Martinez declares that throughout this dispute, Royal Moving has maintained robust and ongoing open lines of communication with Plaintiff, including settlement discussions, which contributed to a delayed retention of counsel and response to the complaint. (See Martinez Suppl. Dec., ¶ 4.) Royal Moving’s neglect was rooted in good intentions and was not intended to cause prejudice, delay, or cost to any party or the court. (*Ibid.*) Ms. Martinez requests that the Court set aside the entry of default to allow Royal Moving to file a response. (*Id.*, ¶ 5.) Ms. Martinez is not aware of any default judgment having been entered, is ready to defend this case if the parties cannot

reach a negotiated resolution and is not aware of any prejudice to Plaintiff by allowing Royal Moving to respond. (*Ibid.*)

Plaintiff has not filed additional filings responding to Defendant's August 3rd supplemental declaration.

Royal Moving seeks relief under Code of Civil Procedure section 473 subdivision (b), which provides in pertinent part.

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a **copy of the answer or other pleading proposed to be filed therein**, otherwise the application shall not be granted, and **shall be made within a reasonable time, in no case exceeding six months**, after the judgment, dismissal, order, or proceeding was taken.

(Code Civ. Proc., § 473, subd. (b).)

"Unless the application is accompanied by an 'attorney affidavit of fault' ..., relief is *discretionary* and must be based on a showing of 'mistake, inadvertence, surprise, or excusable neglect.' [CCP § 473(b); see *Lorenz v. Commercial Acceptance Ins. Co.* (1995) 40CA4th 981, 989... (citing text)] [¶] The party moving for relief on the basis of 'mistake, inadvertence, surprise, or excusable neglect' must show *specific facts* demonstrating that one of these conditions was met." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 5:310, citing *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.) "[O]n a motion for relief from default, 'doubts must be resolved *in favor of relief*, with an order denying relief scrutinized [on appeal] more carefully than an order granting it.' [*Lasalle v. Vogel* (2019) 36 CA5th 127, 134, 248 CR3d 263, 268 (emphasis in original)]" (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 5:281.4.)

The motion is granted pursuant to the discretionary provision of Code of Civil Procedure section 473, subdivision (b). The default entered on March 11, 2026, is set aside. The Court finds that Royal Moving has made a sufficient showing of inadvertence, surprise, and excusable neglect in failing to timely respond to the complaint. (See Martinez Suppl. Dec., ¶¶ 2-4.) While Royal Moving filed the motion without counsel on March 30, 2026, counsel for Royal Moving took steps on July 13, 2026, to introduce himself to Plaintiff and to propose a written stipulation to set aside the default. (See Skogsberg Dec., ¶ 2.) Royal Moving then filed supplemental papers on July 14, 2026. Under these circumstances, the Court concludes the delay of approximately four months following entry of default was not unreasonable. (See *Lasalle v. Vogel*, *supra*, 36 Cal.App.5th 127, 134 ["The law favors judgments based on the merits, not procedural missteps"].) Moreover, the Court further finds that Plaintiff has not demonstrated prejudice from setting aside the default. (See *Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1343 ["When the moving party promptly seeks

relief and there is no prejudice to the opposing party, very slight evidence is required to justify relief.”].)

Accordingly, Royal Moving’s request to set aside entry of default entered on March 11, 2026, is granted. The Court directs Royal Moving to file and serve its motion to dismiss or stay (forum non conveniens). (See Ex. B to Skogsberg Dec.)

ORDER (PROPOSED)

Royal Moving’s request to set aside entry of default entered on March 11, 2026, is granted. The Court directs Royal Moving to serve notice of this order and to file and serve its motion to dismiss or stay (forum non conveniens) (See Ex. B to Skogsberg Dec.) within 10 days.